FOR THE CALL OF THURSDAY 8 OCTOBER 2026, 9:00 PM EASTERN

The Constitution question, and NSS Financials

Article III, and what the public financial record shows: budgets, Secretary-Treasurer reports, audits and IRS Form 990 filings

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Independent review of publicly available records. Files retrieved 22–30 Sep 2026; facts as of 5 Oct 2026.

Not an official NSS document. No login was used for anything shown. Not legal or accounting advice.

TONIGHT

Two questions, one set of ground rules

PART 1 · 20 MIN

The Article III question

- The rule for amending the Constitution
- The wording before and after July 2024
- How the last amendment was done
- What the 2024 record shows

PART 2 · 20 MIN

The public financial record

- What has been public, and when
- The numbers: assets, revenue, budgets
- Audits and the missing FY2022 return
- What the Form 990s say about governance
- People named on the returns

GROUND RULES

How this was done

- Public sources only; no login
- Descriptive: documents side by side
- Every slide names its file and page
- Names appear as the records print them
- Members-only material is kept separate

Source: docs/ and data/ in the project archive; CRAWL_POLICY.md; data/financial/SOURCES.md

PART 1

The Article III question

Did the members vote on the 2024 change of wording?

THE RULE

Article VIII: how the Constitution can be changed

Current Board Manual (July 2026), Article VIII

> VIII. Amendments to this Constitution may be proposed by either the Board of Governors or by petition of five percent of the regular or higher membership of the Society. Proposed amendments will be mailed to all regular or higher members of the Society. Amendments will be adopted by a two-thirds favorable vote of all ballots returned within ninety days of the mailing.

caves.org/wp-content/uploads/2026/09/Board-of-Governors-Manual-2026-07-06.pdf#page=6

June 2023 Board Manual, Article VIII

> VIII. Amendments to this Constitution may be proposed by either the Board of Governors or by petition of five percent of the regular or higher membership of the Society. Proposed amendments will be mailed to all regular or higher members of the Society. Amendments will be adopted by a two-thirds favorable vote of all ballots returned within ninety days of the mailing.

Wayback: caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf#page=10

Three requirements

1 Proposed by the Board of Governors, or by a petition of five percent of regular or higher members.

2 Mailed “to all regular or higher members of the Society.”

3 Adopted “by a two-thirds favorable vote of all ballots returned within ninety days of the mailing.”

The article has no exception for small, clerical or single-word changes, and gives the Board no power to adopt an amendment itself.

Source: NSS Constitution, Article VIII — Board Manual “As of the July 06, 2026 meeting” p6 and “As of 20 June 2023” p10 (PDF pages). Same wording in all eight public copies examined (2008–2026).

BEFORE JULY 2024

Article III: “appoint officers for the Society”

Constitution, standalone PDF, 2008

> III. The government of this Society shall be by a Board of Governors which shall have full power to conduct and supervise all business of the Society, draft and adopt the Bylaws of the Society, make changes therein, appoint officers for the Society, and perform all other functions incident to the proper conduct of the Society.

Wayback: www.caves.org/nss-business/bog/Constitution.pdf

Internet Archive copy of 17 May 2008

Board Manual, “As of 30 May 2022”

> III. The government of this Society shall be by a Board of Governors which shall have full power to conduct and supervise all business of the Society, draft and adopt the Bylaws of the Society, make changes therein, appoint officers for the Society, and perform all other functions incident to the proper conduct of the Society.

caves.org/wp-content/uploads/2022/06/Board_of_Governors_Manual.pdf#page=10

Live on caves.org

Constitution, standalone PDF, uploaded 20 Jun 2022

> III. The government of this Society shall be by a Board of Governors which shall have full power to conduct and supervise all business of the Society, draft and adopt the Bylaws of the Society, make changes therein, appoint officers for the Society, and perform all other functions incident to the proper conduct of the Society.

caves.org/wp-content/uploads/2022/06/NSS_Constitution.pdf

Still live on caves.org with this wording (checked 8 Oct 2026)

Board Manual, “As of 20 June 2023”

> III. The government of this Society shall be by a Board of Governors which shall have full power to conduct and supervise all business of the Society, draft and adopt the Bylaws of the Society, make changes therein, appoint officers for the Society, and perform all other functions incident to the proper conduct of the Society.

Wayback: caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf#page=10

Internet Archive copy of 19 Oct 2023

Source: Standalone Constitution PDFs (2008, 2022) and Board Manuals “As of 30 May 2022” and “As of 20 June 2023”, PDF p10

FROM JULY 2024

Article III: “appoint Executive Director for the Society”

Board Manual, “As of July 1st, 2024”

> III. The government of this Society shall be by a Board of Governors which shall have full power to conduct and supervise all business of the Society, draft and adopt the Bylaws of the Society, make changes therein, appoint Executive Director for the Society, and perform all other functions incident to the proper conduct of the Society.

caves.org/wp-content/uploads/2024/07/Board-of-Governors-Manual-2024-7-1_0.0.pdf#page=6

Live on caves.org

Board Manual, “As of the September 30, 2024 meeting”

> III. The government of this Society shall be by a Board of Governors which shall have full power to conduct and supervise all business of the Society, draft and adopt the Bylaws of the Society, make changes therein, appoint Executive Director for the Society, and perform all other functions incident to the proper conduct of the Society.

Wayback: caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf#page=6

Internet Archive copy of 16 Sep 2025

Board Manual, “As of the March 14, 2026 meeting”

> III. The government of this Society shall be by a Board of Governors which shall have full power to conduct and supervise all business of the Society, draft and adopt the Bylaws of the Society, make changes therein, appoint Executive Director for the Society, and perform all other functions incident to the proper conduct of the Society.

caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf#page=6

Live on caves.org (address overwritten by each new edition)

Board Manual, “As of the July 06, 2026 meeting”

> III. The government of this Society shall be by a Board of Governors which shall have full power to conduct and supervise all business of the Society, draft and adopt the Bylaws of the Society, make changes therein, appoint Executive Director for the Society, and perform all other functions incident to the proper conduct of the Society.

caves.org/wp-content/uploads/2026/09/Board-of-Governors-Manual-2026-07-06.pdf#page=6

Live on caves.org; the most recent edition

Compared word by word, this is the only change to the nine articles between the June 2023 and July 2024 Manuals.

Source: Board Manuals “As of July 1st, 2024”, “As of the September 30, 2024 meeting”, “As of the March 14, 2026 meeting”, “As of the July 06, 2026 meeting” — PDF p6 in each

THE LAST AMENDMENT

How Article IX was amended in 2013–14

Minutes of 14 July 2014, item 4 (as posted on caves.org):

> **4) Report of Motion to Amend Constitution of the National Speleological Society, INC, Article IX**
> *Section 8 of the Constitution states in part: "Amendments will be adopted by a two-thirds favorable vote of all ballots returned..."*
>
> *Item 13 of Appendix X of the Acts states "When required, the President may put a Bylaw or act referendum, along with a pro and a con position statement, on the ballot to be voted on." Due to both time constraints with a change in the D.C. Corporation Act and as a cost-saving measure to the membership, President Shrewsbury placed the following motion on the Director Election Ballot:*
>
> Shrewsbury moved: The National Speleological Society Constitution is amended as follows: IX. The organization of this Society shall <be under Title 5, Chapter 5, of the Code of the District of Columbia, and shall> become effective as of January 1, 1941.
>
> After the required 90 days had passed and the election cycle complete, the results were:
>
> Membership in favor: 1,839 (93.2%)
> Membership against: 135 (6.8%) PASSED

caves.org/wp-content/uploads/p/boardminutes/1407BOG.pdf#page=2

Nov 2013	The Board passes the motion to amend Article IX (item 26)
Mar 2014	"There will be a NSS Constitutional Amendment on the ballot" (President's report)
Spring 2014	On the director election ballot, kept open 90 days
Result	1,839 in favour (93.2%), 135 against
14 Jul 2014	Result reported to the Board and minuted (item 4)
Manual	Recorded under the Constitution: "07/14/14:4 - Article IX"

Source: Minutes of 9 Nov 2013 (1311BOG.pdf) item 26; President's report, March 2014; minutes of 14 Jul 2014 (1407BOG.pdf) item 4, PDF p2; Board Manual amendment record

THE RECORD

The amendment record printed under the Constitution

June 2023 Manual

IX. The organization of this Society shall become effective as of January 1, 1941.

Amended:
06/72
07/14/14:4 - Article IX

Wayback: caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf#page=10

Before the wording of Article III changed

July 2026 Manual (most recent)

IX. The organization of this Society shall become effective as of January 1, 1941.

Amended:
June 1972
Article IX: 07/14/14:4

caves.org/wp-content/uploads/2026/09/Board-of-Governors-Manual-2026-07-06.pdf#page=6

After

The same two entries, before and after: June 1972, and Article IX on 14 July 2014. The format was tidied in 2024; nothing was added.

There is no entry for Article III in any of the four editions published since July 2024.

Source: Lines printed directly below Article IX in each Board Manual: “As of 20 June 2023” p10 and “As of the July 06, 2026 meeting” p6 (PDF pages)

2024

What the public record shows for the Article III change

Found	The Board adopted the restructuring on 10 March 2024, 16–0. The motion amends “bylaws and acts (including appendices)”. It does not name the Constitution.
Found	A floor amendment allowed “clerical changes” replacing “president” with “Executive Director”, in three named Acts (18-640, 18-747, 18-986).
Not found	A Constitution section in the 144-page restructuring proposal.
Not found	The word “Constitution” in any public Board minutes or agenda from June 2023 to July 2026, apart from the text of one fund Act.
Not found	A ballot notice, a vote count, or a Manual entry for Article III, as there is for Article IX in 2014.
Not checked	NSS News and election notices. They are member-only, and a ballot would be announced there.

Source: Minutes of 10 Mar 2024 (2403BOG.pdf) item 5.5; NSS Restructuring Proposal_2024-2-7 (144 pp); all public Board minutes and agendas, June 2023 – July 2026

THE BRIDGE

Why Article III matters for the financial record

	Before 1 July 2024	From 1 July 2024
Article III says the Board may	"appoint officers for the Society"	**"appoint Executive Director for the Society"**
Governing body	12 directors plus 5 officers	12–15 directors; 1 a year appointed by the Board
Officers in the Bylaws	President, EVP, AVP, OVP, Secretary-Treasurer	**None. The Secretary-Treasurer is not mentioned**
Who runs operations	The officers	A paid Executive Director, managed by the Chair
Who signs the Form 990	Secretary-Treasurer	**"Secretary-Treasurer" (FY2025 return, signed Oct 2025)**
Acts naming the Secretary-Treasurer	36 (June 2023)	4 (July 2024) → 13 (July 2026)
Acts naming the Executive Director	0	58 (July 2024) → 35 (July 2026)

Source: Bylaws in Board Manuals "As of 20 June 2023" (Art. IV) and "As of July 1st, 2024" (Arts. V–VII); Acts counts from analysis/out/acts_naming_role_by_edition.csv

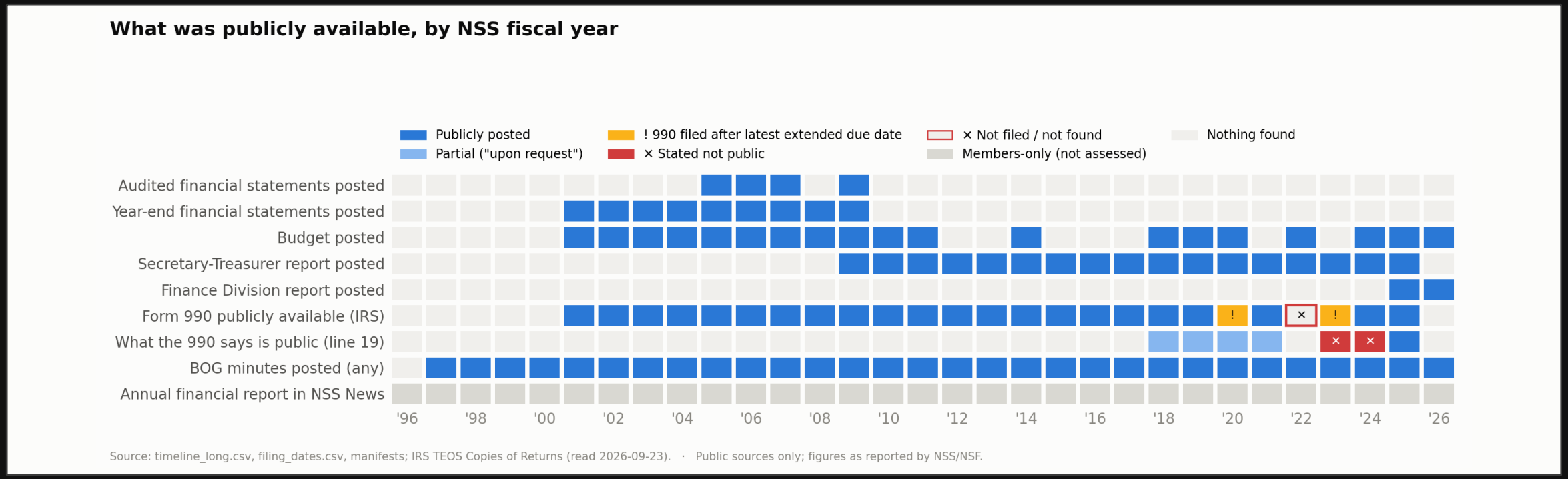
PART 2

The public financial record

Budgets, Secretary-Treasurer reports, audits and IRS Form 990 filings, FY2001–FY2026

WHAT IS PUBLIC

What was publicly available, by fiscal year

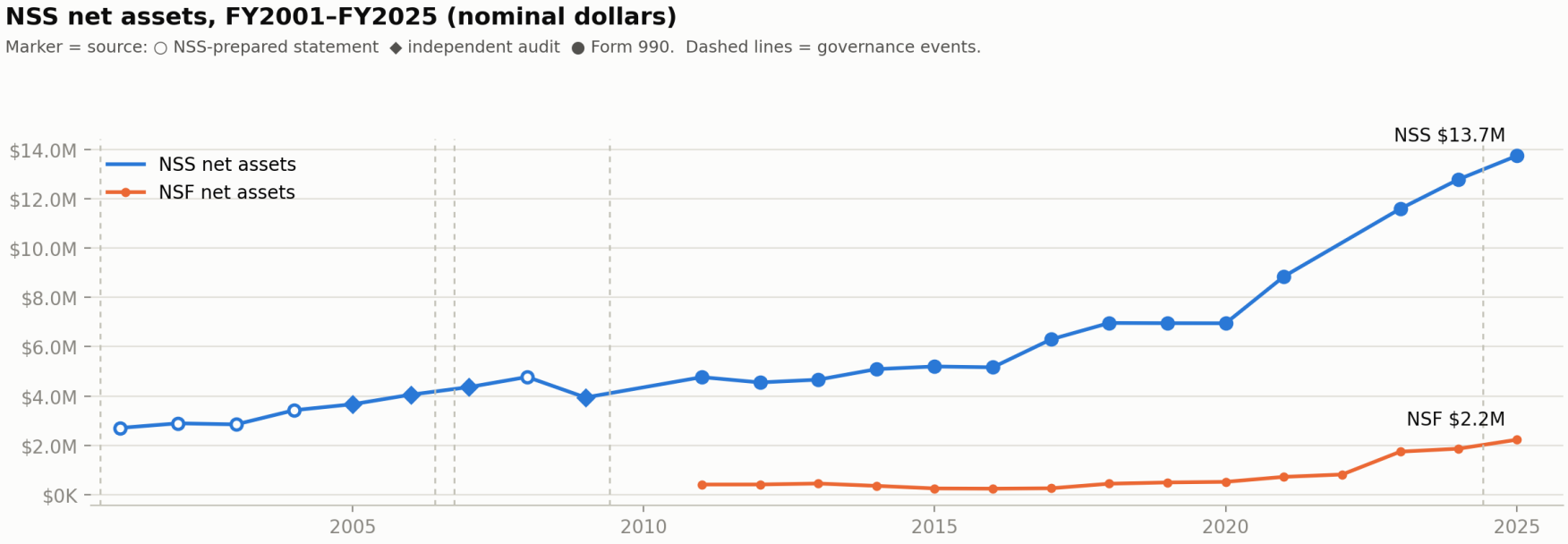


- About 2001–2010: audited statements, year-end statements, budgets and a Financial Policy were posted on a public “fiscal-information” page.
- No audited statements appear after FY2009. From about 2010 the public record is officer reports attached to Board meetings.
- FY2022: no Form 990 found. FY2023 and FY2024 returns state “No documents available to the public.”

Source: data/financial/timeline_long.csv, irs_990/filing_dates.csv, finance and minutes manifests; IRS TEOS read 23 Sep 2026

THE NUMBERS

Net assets, FY2001–FY2025

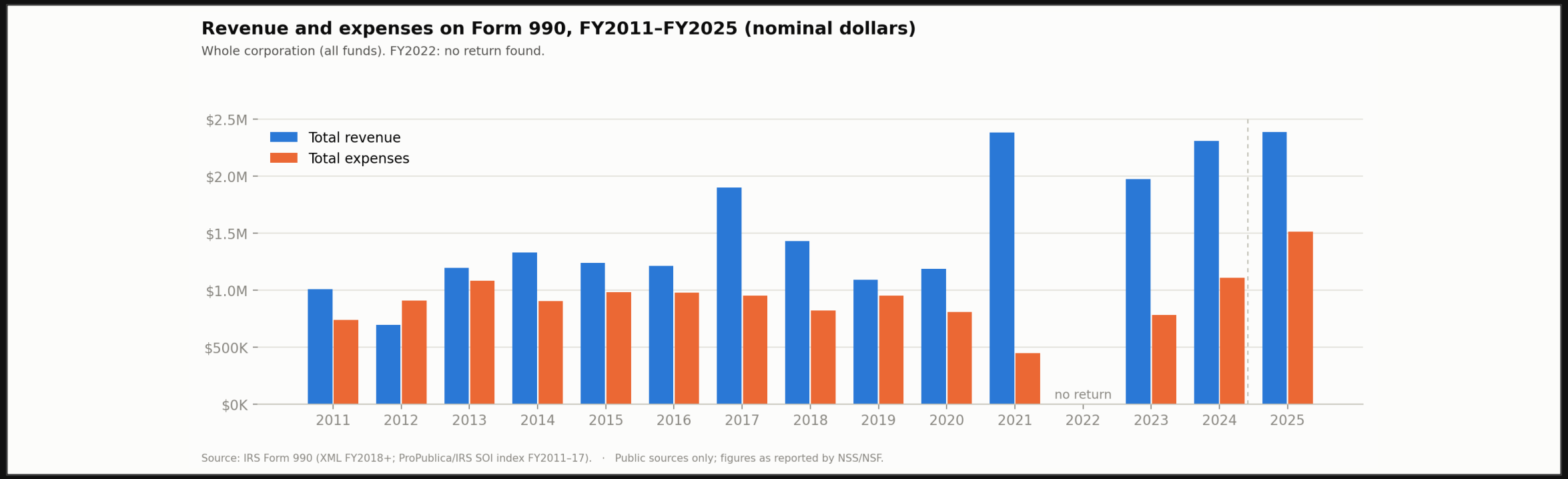


- Net assets on the Form 990 grew from $4.76M (FY2011) to $13.74M (FY2025).
- The March 2025 Finance report gives total assets of $13.76M, consistent with the FY2025 return ($13.84M).
- The Executive Director’s Spring 2026 report: “The Society is financially healthy.”

Source: NSS year-end statements FY2001–09; audited statements FY2005–09; Form 990 FY2011–25 (annual_financials_990.csv). Nominal dollars; inflation-adjusted version available.

THE NUMBERS

Revenue and expenses on the Form 990

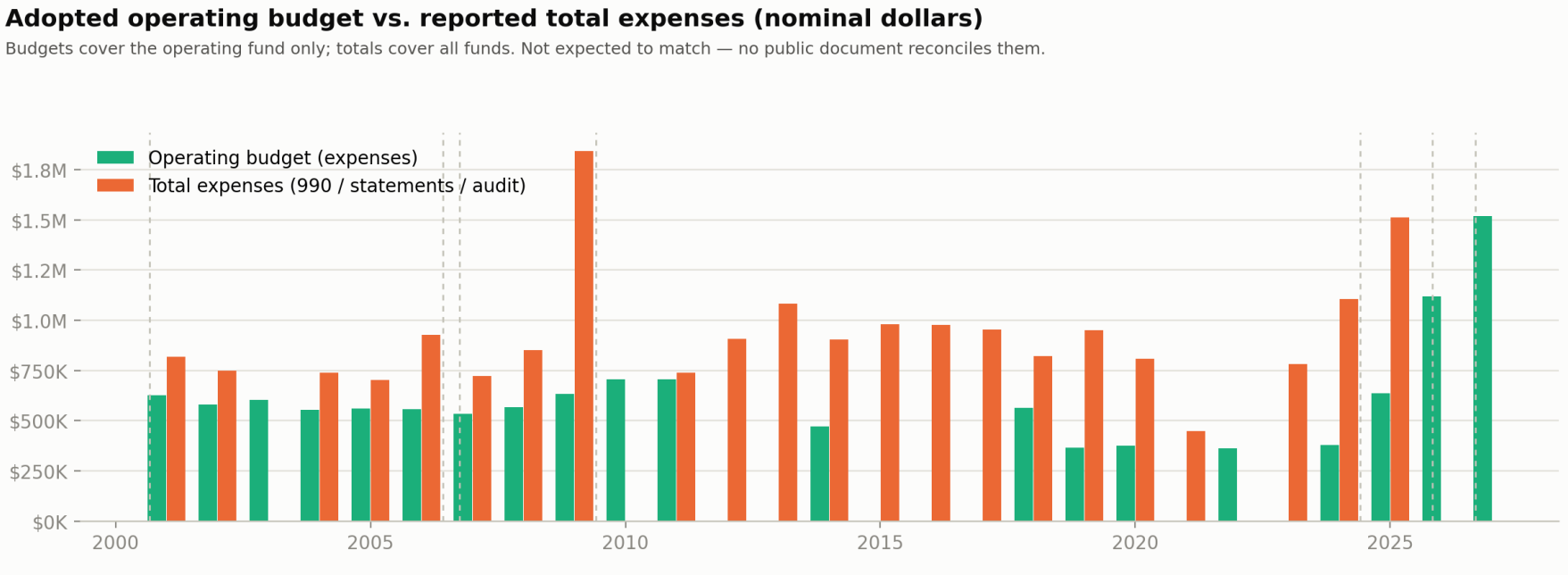


- FY2021: revenue $2.38M against expenses $0.45M. FY2022: no return. FY2025: expenses $1.51M, the highest in the series.
- FY2023 reports contributions of $2.69M alongside “other revenue” of −$813,979.
- No NSS return from FY2018 to FY2025 reports that the financial statements were audited, compiled or reviewed.

Source: IRS Form 990 e-file XML FY2018+; ProPublica / IRS SOI index FY2011–17 (annual_financials_990.csv)

THE NUMBERS

What the Board approves and what the IRS sees

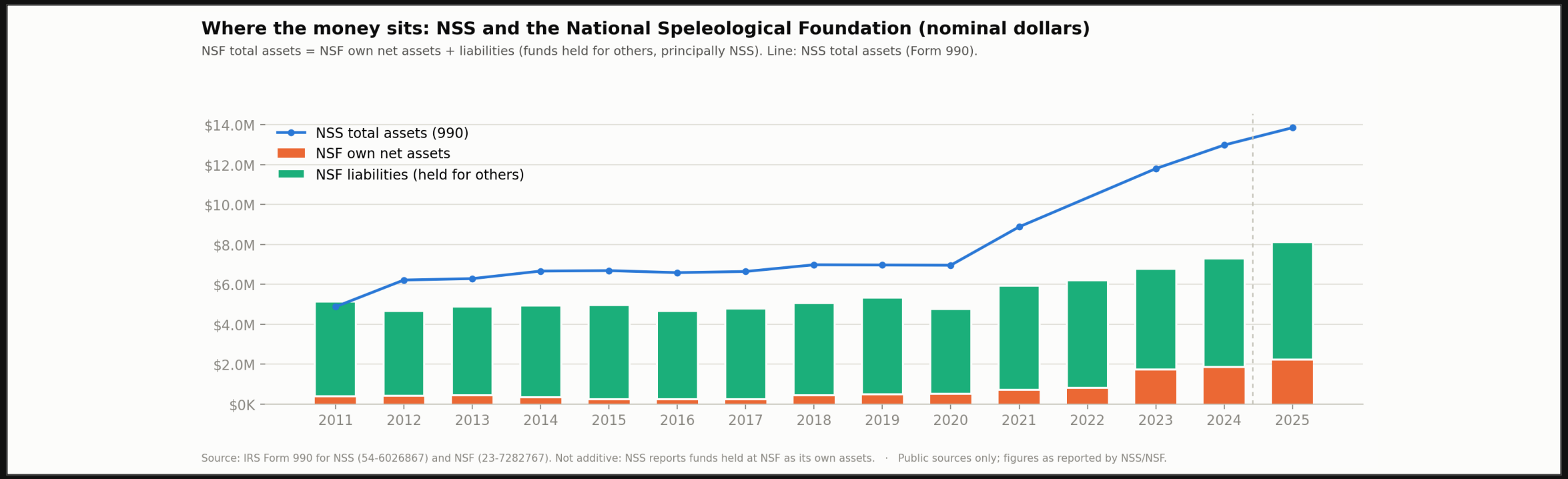


- Budgets cover the operating fund only. Form 990 expenses are 1.9–2.9 times larger in the years with both (FY2014, 2019, 2020, 2024, 2025).
- That difference in scope is expected. No public document bridges the two.
- The budget changes character in FY2026–27: expenses of $1.12M and $1.52M, against $0.64M in FY2025.

Source: Operating budgets posted on caves.org and the Internet Archive; Form 990 total expenses (timeline_long.csv)

THE NUMBERS

Where the money sits: the Society and the Foundation



- The Foundation reports total assets of $8.13M (FY2025), of which $2.22M is its own net assets; the rest is largely funds held for the NSS.
- The Foundation answers Yes to conflict-of-interest, whistleblower and retention policies, documented minutes and an audit committee, every year from FY2019.
- July 2026: the Board deleted 22 fund Acts and placed remaining restricted funds in a Foundation “Holding Fund”.

Source: Form 990s of the NSS (EIN 54-6026867) and the National Speleological Foundation (EIN 23-7282767), FY2011–25

AUDITS

The last audit report in the public record is for FY2008-09

When	Document	What it says
FY2005–FY2009	Audited statements (old site)	Outside CPA audits posted. Two qualified opinions (FY2006-07, FY2007-08); FY2008-09 unqualified. No audit report is posted for any later year.
Mar 2017	Minutes p5	**"Not withstanding Act 15-510 the NSS will not conduct audits for FY 15/16 or FY 16/17." One against.**
Mar 2019	Minutes p4; agenda pp7–8	FY17/18 audit suspended: books "not up to auditing standards". A review "in lieu of" an audit for FY18/19; audits to "resume for FY 19/20". Four against.
Nov 2019	Minutes p4	**Act 15-510 changed: the annual "audit" becomes an annual "review". Five against.**
Nov 2021	Special meeting minutes p1–2	Borland and Benefield, $15,900, "full audit of the NSS, NCRC, and NSS Convention finances": "a financial review cannot be performed if there has not been a previous audit".
Jun–Oct 2022	S-T report p11; minutes p2	"We are in the middle of the audit"; "on verge of audit"
Jul 2024	S-T report p2	**"Our tax return has not been filed since 2020 due to problems with the audit."**
Jul 2024 → today	Act 15-510, Manual p19	The NSS "must engage" a CPA "to conduct an annual financial review". "The Board must review and approve the reviewed financial statements."
Mar–Sep 2026	Finance report; minutes; S-T and Interim ED report, 17 Sep	**"Working on audit firm finalization" (Mar). Sep: "extensive audit support … for the FY 2025–2026 audit; anticipated completion remains Fall 2026"**
FY2018–FY2025	Form 990, Part XII	**Every return answers: statements not compiled, not reviewed, not audited.**

Source: Audited statements 2005–2009 (old NSS site, Wayback); Agenda-1011 p7; minutes 1703BOG p5, 1903BOG p4, 1911BOG p4, 2111BOG_Special p1–2, 2210BOG p2; S-T-2206 p11; 2407-ST p2; Board Manual July 2026 p19; 2603-Finance-Report; minutes 14 Mar 2026; S-T and Interim ED report 17 Sep 2026 p3; Form 990 Part XII FY2018–25

FY2022

No Form 990 for the year ending March 2022 in any IRS source

What the IRS has

- FY2021 return: e-filed Nov 2021
- **FY2022 return: none**
- FY2023 return: signed 16 Jul 2024
- FY2024 return: signed 22 Jul 2024

E-filing has been mandatory for this period, so a filed return would be in the index. The Foundation's FY2022 return is there.

The NSS is in IRS Pub. 78 and is not on the auto-revocation list.

Meeting	Report	What NSS's own report says
Jul 2021	S-T	"Completed 2019 Form 990 / Completed 2020 Form 990"
Oct 2022	President	"Prepare financials for 990 due 9/30"
Nov 2023	S-T	"our accounting and bookkeeping functions are pretty far out of whack"
Jul 2024	S-T	**"Our tax return has not been filed since 2020 due to problems with the audit."**
Nov 2024	Financial	**"Pete is working with David Oase to obtain our 2022 and 2023 tax returns … both years are done but we have not received a copy."**
Mar 2025	Finance	Same sentence repeated
Minutes	2021–2026	No Board minutes mention a 990, a tax return, an extension or a penalty

Source: IRS e-file indexes 2019–2026; IRS TEOS "Copies of Returns" (read 23 Sep 2026); ProPublica; S-T-2107 p2, 2210-Pres p2, S-T-2311 pp10–11, 2407-ST p2, 2411-Financial p3, 2503-Finance p3

FY2022

A $1.7 million change that appears on no public return

Measure	Internal QuickBooks (S-T reports)	Form 990
Net assets at 31 Mar 2021	$8,734,739	$8,846,753 (FY2021 year-end)
Change during FY2022	+$2,384,716 (net revenue, reported Jun 2022)	**not filed; implied +$1,705,523**
Net assets at 31 Mar 2022	$11,119,455 (Jun 2022) / $10,972,027 (Oct 2022)	$10,552,276 (FY2023 beginning of year)
Net assets at 31 Mar 2023	$11,741,214	$11,593,157 (FY2023 year-end)

- The FY2023 return's "prior year" column repeats FY2021 exactly (revenue $2,382,898; expenses $448,401), not FY2022.
- No large outlay in the record: FY2022 expenses $748K, HQ repairs about $24K. The increase is income: restricted donations $1.18M (estates of Gail and Ray Beach and Roswell Jones, President's report Dec 2021) and investment gains $1.05M.
- The FY2023 return then reports contributions of $2.69M, investment income $0 and program revenue −$785K. No public document reconciles the two years.
- Figures from the June 2022 report are from OCR of a scanned PDF and should be checked against the original. Unaudited.

Source: Form 990 XML FY2021 and FY2023 (net assets EOY/BOY; prior-year column); S-T-2206 pp4–9 (OCR), S-T-2112 p2, S-T-2203 p3, PRES-2112 p6, S-T-2210, S-T-2311

FY2022

Two questions the public record cannot answer

1. The two totals do not match

FY2022	What the Board saw	What the returns imply
Increase in net assets	+$2,384,716	+$1,705,523
Net assets, 31 Mar 2022	$11,119,455 (Jun 2022); $10,972,027 (Oct 2022)	$10,552,276
Difference	**$419,751 to $567,179**	

No public document reconciles the two. The return that would show FY2022 is in no IRS source.

2. The FY2023 return looks unlike any other

Return	Contributions	Return	Contributions
FY2018	$895,968	FY2022	--
FY2019	$587,395	FY2023	**$2,689,082**
FY2020	$423,388	FY2024	$833,847
FY2021	$1,198,418	FY2025	$1,102,420

- FY2023 also reports investment income of $0 and program-service revenue of −$784,552.
- Contributions are more than double any other year's.
- Whether FY2022 gifts were reported on the FY2023 return cannot be told from the public record.

What would settle both: the FY2022 Form 990, the Society's reconciliation of FY2022 to FY2023, or the annual CPA review that Act 15-510 requires.

Source: S-T-2206 pp4–9 (OCR, statements dated 31 May 2022); S-T-2210 (OCR); Form 990 e-file XML FY2018–FY2025: Part I lines 8–9, Part VIII lines 1h, 2g, 3, 7d, Part X line 33, Part XI line 9, Schedule O

THE FORM 990

NSS's own answers to the IRS governance questions

How NSS answered the IRS governance questions (Form 990, Part VI)

Answers as filed. ⚑ = answer differs from a public NSS document (see notes).

	FY2018	FY2019	FY2020	FY2021	FY2022 no return	FY2023	FY2024	FY2025
Organization has members (6)	Yes	Yes	Yes	Yes	--	⚑ No	⚑ No	⚑ No
Members elect governing body (7a)	Yes	Yes	Yes	Yes	--	⚑ No	⚑ No	⚑ No
Board meetings documented (8a)	Yes	Yes	Yes	Yes	--	⚑ No	⚑ No	Yes
Written conflict-of-interest policy (12a)	Yes	Yes	Yes	Yes	--	⚑ No	⚑ No	⚑ No
Written whistleblower policy (13)	Yes	Yes	Yes	Yes	--	No	No	No
Written document-retention policy (14)	Yes	Yes	Yes	Yes	--	No	No	No
Financial statements audited (Pt XII 2b)	No	No	No	No	--	No	No	No
Financial statements compiled/reviewed (Pt XII 2a)	No	No	No	No	--	No	No	No

Source: IRS Form 990 e-file XML. No NSS return for FY2022. ⚑ (6) Constitution V: membership open to persons interested in speleology; Bylaws II (membership, dues).; (7a) Bylaw V.B.1: three directors elected each year by vote of the membership.; (8a) Minutes for BOG meetings in this period are posted on caves.org (see data/manifest.csv).; (12a) Act 03-445 Conflict of Interest (06-28-85; amended 03-01-25) in the BOG Manual. · Public sources only; figures as reported by NSS/NSF.

- FY2023–25 answer No to a written conflict-of-interest policy. Act 03-445 has existed since 1985 and was expanded on 1 March 2025.
- FY2023–24 answer No to documenting Board meetings. Minutes of at least seven meetings in those years are posted.
- FY2023–25 on Board review of the return: "No review was or will be conducted."

Source: Form 990 Part VI and Schedule O, e-file XML FY2018–FY2025 (irs_990/form990_summary.csv, form990_schedule_o.csv)

THE FORM 990

Part VI line 4 on the returns: “No”, every year

Part VI instruction, as printed on every return

Form 990 (2023) Page **6**

Part VI **Governance, Management, and Disclosure.** *For each "Yes" response to lines 2 through 7b below, and for a "No" response to lines 8a, 8b, or 10b below, describe the circumstances, processes, or changes in Schedule O. See instructions.*

Check if Schedule O contains a response or note to any line in this Part VI . . . . . ☑

FY2021 Year to Mar 2021. E-file XML; the IRS publishes no page image

```
<FamilyOrBusinessRlnInd>false</FamilyOrBusinessRlnInd>
<DelegationOfMgmtDutiesInd>false</DelegationOfMgmtDutiesInd>
<ChangeToOrgDocumentsInd>false</ChangeToOrgDocumentsInd>
<MaterialDiversionOrMisuseInd>false</MaterialDiversionOrMisuseInd>
```

FY2023 Year to Mar 2023 (Form 990 for 2022)

4 Did the organization make any significant changes to its governing documents since the prior Form 990 was filed? . | 4 | | No

FY2024 Year to Mar 2024. New Bylaws adopted 10 Mar 2024

4 Did the organization make any significant changes to its governing documents since the prior Form 990 was filed? . | 4 | | No

FY2025 Year to Mar 2025. New Bylaws and Article III wording in force from 1 Jul 2024

4 Did the organization make any significant changes to its governing documents since the prior Form 990 was filed? . | 4 | | No

NO Schedule O note on line 4 in any of these returns.

Schedule O is where a “Yes” on line 4 must be described. Every return answers No, so the 2024 replacement of the Bylaws and the change to Article III are described nowhere on the returns.

Source: Form 990 Part VI line 4 (ChangeToOrgDocumentsInd) and Schedule O: FY2021 e-file XML object 202113149349305996 (no page image published); FY2023, FY2024, FY2025 return images from IRS TEOS “Copies of Returns”, page 6

THE FORM 990

The 2024 restructuring, as it appears on the returns

Form 990 item	FY2021	FY2022	FY2023	FY2024	FY2025
Significant changes to governing documents (line 4)	No	--	No	**No**	**No**
Voting members of the governing body	17	--	17	17	**12**
Independent voting members	7,273	--	7,273	7,273	**0**
Has members / members elect the board	Yes / Yes	--	No / No	No / No	No / No
People listed as officers and directors	17	--	17	18	12, all directors
Signed by	K. Ebrey, Secretary/Treasurer	--	K. Ebrey, Secretary/Treas	K. Ebrey, Secretary/Treas	K. Ebrey, Secretary-Treasurer
Paid preparer	Profit Wise	--	David Oase CPA PC	David Oase CPA PC	none named

The restructuring was adopted on 10 March 2024 (inside FY2024) and took effect on 1 July 2024 (inside FY2025). The Bylaws were rewritten, 330 Acts were dropped and five offices were removed. Neither return reports a change, and neither carries a Schedule O note describing one.

Source: Form 990 e-file XML FY2021–FY2025: Part VI lines 1a, 1b, 4, 6, 7a; Part VII; signature block. “--” = no FY2022 return exists. Restructuring: minutes of 10 Mar 2024 item 5.5.

THE FORM 990

FY2024: the people on the return and the people in the minutes

On the FY2024 return (18)

Spelled as printed on the return.

Kristine Ebrey, President · “Gary Schnidel” [Geary Schindel], President · “Scott Engle” [Engel], Executive VP · Maureen Handler, “Opperations V” · Adam Weaver, Administration · David Oase, Treasurer

Directors: Nick Anderson, Julie Brown, Riley Drake, Stephen Gladieux, Pete Johnson, Jean Krejca, Sonia Meyer, Carol Tiderman, Benjamin Tobin, Doug Warner, Sharon Weaver, “Meredity Hall Webreg” [Meredith Hall Weberg]

Roll call, 10 March 2024 (17)

Officers: Kristine Ebrey, President · Emily Davis, AVP · Scott Engel, EVP · Maureen Handler, OVP · David Oase, Secretary-Treasurer

Directors: David Brumbaugh, Travis Camp, Stephen Gladieux, Pete Johnson, Jean Krejca, Miki Manning, Carol Tiderman, Benjamin Tobin, Sharon Weaver, Dennis Melko, Nina Martin, Max Kenngott (absent)

The difference

In the minutes, not on the return (7): Emily Davis, David Brumbaugh, Travis Camp, Miki Manning, Dennis Melko, Nina Martin, Max Kenngott

On the return, not on the roll (8): Geary Schindel, Adam Weaver, Nick Anderson, Julie Brown, Riley Drake, Sonia Meyer, Doug Warner, Meredith Hall Weberg

The FY2023 return lists the same 17 names as FY2021, with the same spellings. FY2024 is that list with Kristine Ebrey retitled President and David Oase added. The roll call is one meeting; the return should list everyone who served during the year, so some difference is expected.

Source: Form 990 FY2024 Part VII (XML object 202422049349300742, signed 22 Jul 2024); FY2021 and FY2023 Part VII; minutes of 10 Mar 2024 (2403BOG.pdf, FINAL) p1. Spellings as printed.

THE FORM 990

FY2025: the people on the return and the people in the minutes

On the FY2025 return (12)

Spelled as printed on the return.

Peter Johnson, “Chair of the Directorate”

Directors: Rebecca McNabb, Nina Martin, “Miki Kabler” [Kalber], Zach Englebert, Mike Backe, Josh Schultz, Anna Pearce, Michael Mansur, Sarah Arpin, “Aria Mildicr” [Mildice], Dennis Melko

No officers listed. Signed by Kristine Ebrey, “Secretary- Treasurer”, who is not in the list.

Rolls, 30 Sep 2024 and 31 Mar 2025 (14)

Mike Backe, David Brumbaugh, Travis Camp, Zach Englebert, Stephen Gladieux, Pete Johnson, Jean Krejca, Nina Martin, “Miki Manning” (Sep 2024 roll) / “Miki Kalber” (Mar 2025 roll), Dennis Melko, Rebecca McNabb, Aria Mildice, Anna Pearce, Ben Tobin. The two Miki names never appear together; the record does not say whether they are one person. Counted here as one seat

Officers in office 1 Apr – 30 Jun 2024 (10 Mar 2024 roll): Kristine Ebrey, Emily Davis, Scott Engel, Maureen Handler, David Oase

The difference

On both rolls, not on the return (5): David Brumbaugh, Travis Camp, Stephen Gladieux, Jean Krejca, Ben Tobin

On the return, on neither roll (3): Josh Schultz, Michael Mansur, Sarah Arpin

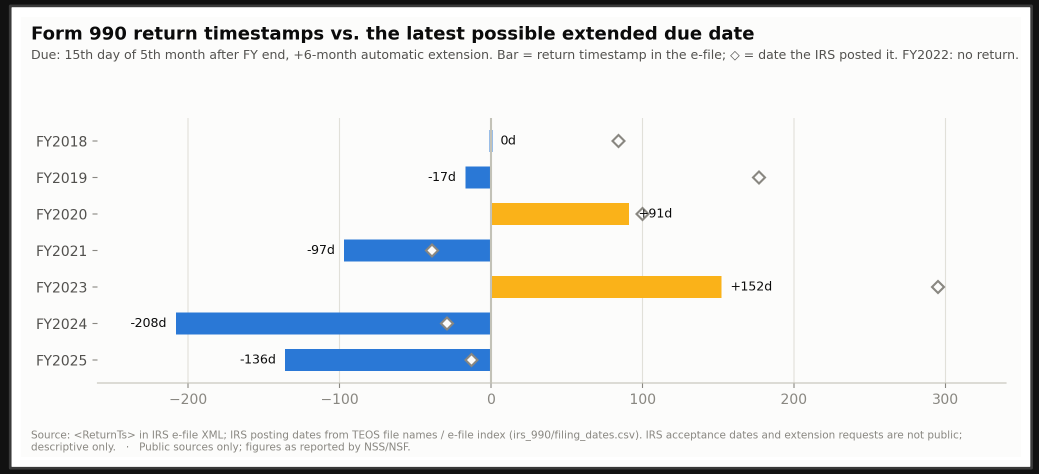
The five officers of April–June 2024 are not on the return.

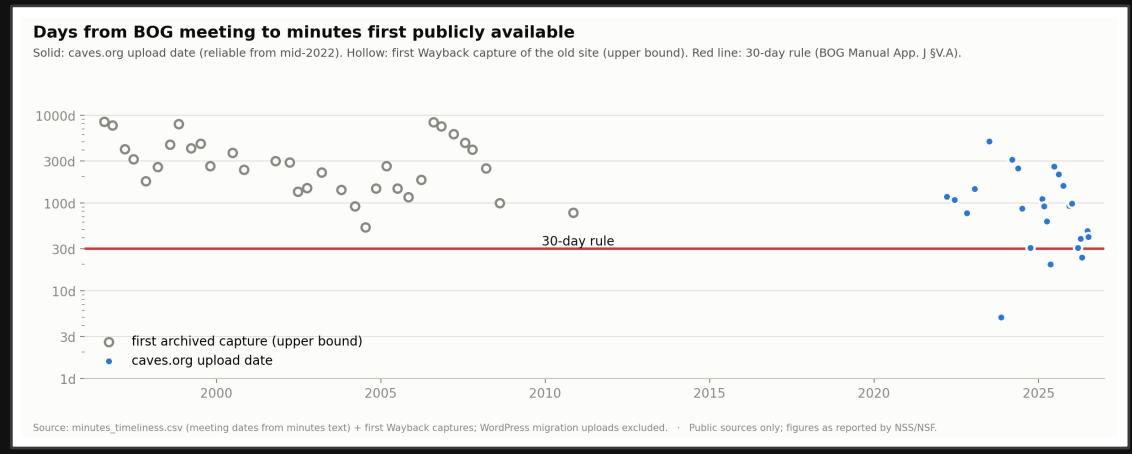
The 12 names match the Board as it stood when the return was signed in October 2025, not the fiscal year it covers (April 2024 – March 2025). The post-2024 Bylaws have a Chair of the Board and no Directorate.

Source: Form 990 FY2025 Part VII (XML object 202522769349300402, signed 3 Oct 2025); minutes of 30 Sep 2024 (2409BOG.pdf, FINAL) p1 and 31 Mar 2025 (FINAL) p1; minutes of 10 Mar 2024 p1. Spellings as printed.

TIMELINESS

When the returns were filed, and when minutes were posted





Fiscal year	Return signed	Against the latest extended due date
2020	17 May 2021	**91 days after**
2021	10 Nov 2021	97 days before
2022	--	**no return**
2023	16 Jul 2024	**152 days after**
2024	22 Jul 2024	208 days before
2025	2 Oct 2025	136 days before

Minutes

- Appendix J requires minutes to be posted within 30 days.
- Since mid-2022, 3 of 24 meetings met that (two more at 31 days).
- Whether a filing extension was requested is not public. This is descriptive only.

Source: irs_990/filing_dates.csv (return timestamp inside each e-file XML vs latest possible extended due date); minutes_timeliness.csv; Board Manual Appendix J §V

THE BOOKS

Who has kept the books, and who prepared the returns

Period	Custodian of the books (Form 990 line 20)	Outside firms and systems named in the record
FY2015–17	Stephanie Rubio; Stephanie Collier — NSS HQ, Huntsville	QuickBooks at HQ since 2011
FY2018–20	Gaylene Speaect — NSS HQ, Huntsville	Borland Benefield PC prepares the FY2018–19 returns. Mar 2020: move to QuickBooks Online; “lost 3 weeks of data”. Jul 2020: Precision Bookkeeping (payroll)
FY2021	Kristine Ebrey — South Pittsburg, TN	Profit Wise prepares the FY2020–21 returns. Nov 2021: Borland and Benefield audit contract, $15,900
FY2022	--	no return
FY2023–24	Kristine Ebrey — South Pittsburg, TN	David Oase CPA PC prepares both returns (signed July 2024). Nov 2023: restricted funds tracked in spreadsheets not reconciled to any account; “Convention account has about $80k in checks that have NOT been recorded” (S-T report p10)
FY2025	Kristine Ebrey — South Pittsburg, TN	No paid preparer named. Avid Exchange (payables), Profit Wise (bookkeeping), RAMP (cards)
Sep 2026	**Kristine Ebrey reports as “Secretary-Treasurer and Interim Executive Director”**	July 2026: fiscal authority in 9 Acts moved from the Executive Director to the Secretary-Treasurer

Source: Form 990 Part VI line 20 and preparer block, FY2015–FY2025 (PDF/XML); S-T-2007 p2, S-T-2103 p3, 2111BOG_Special p1, S-T-2311 pp10–11, 2411-Financial pp1–3, 2503-Finance p2; 2609 S-T/Interim ED report

CONTROL

July 2026: who now controls the accounts

Act	What it governs	Manual, March 2026	Manual, July 2026
15-017	Negotiable funds: who receives checks	Executive Director	**Secretary-Treasurer**
15-020	Bonding of employees and convention treasurers	Executive Director	**Secretary-Treasurer**
15-428	Securities: brokerage accounts, sale of donated securities	Executive Director	**Secretary-Treasurer**
15-495	Monthly income and expense reports from divisions	Executive Director	**Secretary-Treasurer**
15-509	The Financial Review Committee's access to bank accounts	Executive Director	**Secretary-Treasurer**
15-573	Signature authority: opening and closing accounts	Executive Director	**Secretary-Treasurer**
15-776	The financial report	Executive Director	**Secretary-Treasurer**
two more	Refusing payments over budget; reserve-fund transfers	Executive Director	**Secretary-Treasurer**

The Bylaws in the July 2026 Manual do not mention a Secretary-Treasurer. The office left the Bylaws on 1 July 2024. The Acts now give these duties to it.

- Items 8.7 to 8.64 were one consent agenda: one second and one voice vote, a week after the 29 June vote to end the Executive Director's contract.
- Since September 2026 one person reports as "Secretary-Treasurer and Interim Executive Director". Under Act 15-509, the reviewers' access to the accounts is arranged by the officer whose accounts are reviewed.

Source: Board Manual "As of the March 2026 meeting" and "As of the July 06, 2026 meeting", Sections 15–18; draft minutes of 6 and 10 July 2026, items 8.7–8.64; draft minutes 29 Jun 2026; S-T and Interim ED report, 17 Sep 2026

RECENT DECISIONS

Three recent financial items in the Society's own record

The Beech Fund

- "We received the final on the Beech Estate" (S-T, March 2022).
- March 2026 agenda: balance $390,000; bequest intent described as education infrastructure and programs, and a museum at Headquarters.
- 14 Mar 2026: a $190,000 promissory note from the fund authorized (roll call 10–0, 2 absent). 29 Jun 2026: authorization rescinded, unanimously.
- The record spells it both ways: "Beech" in the motions and minutes, "Beach" in agenda notes. The fund does not appear by name in the Manual's fund Acts examined so far.

Headquarters rentals

- ED Annual Report, Spring 2026: rentals show "chronic underperformance"; "the NSS will cease rentals".
- First-year rental profit (2012–13): $5,000; the prediction had been up to $50,000 a year.
- Facilities report, March 2026: rentals "on hold until the future museum option is finalized".
- Status after 29 June 2026: not in the public record.

Legal expenses

- 31 Mar 2025: $15,000 from cash on hand for legal expenses, "as determined by the NSS General Counsel and approved by the Chair".
- January 2026 agenda: legal committee requested $15,000; the Act proposes $30,000.
- 14 Mar 2026, report from closed session: "BoG allocated funds for legal expenses" — no amount given.

Source: 2603_BOG_Agenda p2 item 6.4; S-T-2203 p3; final minutes 14 Mar 2026 pp4–5 (posted 30 Sep 2026); draft minutes 29 Jun 2026 pp2–3; 2603-ED-Annual-Report p31; 2603-Facilities-Report p6; minutes 31 Mar 2025 p4; 2601_BOG_Agenda p2

THE EXECUTIVE ROUTE

What the Executive Director route has cost

Item	Amount	Status	Source
Executive Director salary and benefits	$150,000 a year	Budgeted	FY2024-25 budget: “Assumes hiring 10/1/24 at a salary of $150k/year. It includes benefits.”
First executive search (The Moran Company)	$50,000	Budgeted, “one time cost”	FY2024-25 budget. The minutes confirm the firm was hired; no contract amount is given
First executive search, amount paid	not stated	**unconfirmed by public record**	No public document gives the amount paid
Part-time Secretary-Treasurer	$26,000	Budgeted from 1 Oct 2024	FY2024-25 budget: “Part Time S-T”. Capped at 17 hours a week (ED report, Oct 2025)
Secretary-Treasurer, FY2026-27	$104,000	Budgeted, approved 14 Mar 2026	FY2026-27 budget: “New full-time hire 2025-2026”; last year $42,000
Second executive search	$55,000	Approved 14 Sep 2026, voice vote	Draft minutes, item 6.1: “$55,000 for recruiting costs to source a new Executive”
Severance to the former Executive Director	not stated	**unconfirmed by public record**	Author’s statement. Minutes: contract terminated “without cause”; the contract is not public
Salary to the Interim Executive Director	not stated	**unconfirmed by public record**	Author’s statement

Unconfirmed by public record: stated by the author, Aaron Bird, from his own knowledge. No public document has been found for these items, and they are kept apart from the documented figures. The Form 990 for the year ending March 2026 must list the Executive Director’s compensation; it was not in the IRS index on 23 September 2026.

Source: FY2024-25 budget p2; FY2026-27 budget (v3, 11 Mar 2026) p3; The Moran Company position profile (Wayback, Nov 2024); Executive Director’s report, Oct 2025; agenda and draft minutes, 14 Sep 2026; draft minutes 29 Jun 2026

THE EXECUTIVE ROUTE

What the 2020 committee said to do first, and what was done

The 2020 committee said	The Bylaws since 1 July 2024	Status
Rework the Bylaws around an Executive Director	Articles V–VII rewritten; adopted 10 March 2024	**Done**
Keep five appointed officers on the Board	Officers removed from the Bylaws entirely; Board of 12–15 directors	**Opposite**
Make it a governing Board	V.A: Board responsible for strategy, hiring the Executive Director, and oversight of operations	**Wording added**
Choose directors for skills, not for how well they are known	V.B.2: one director a year appointed by the Board. V.B.4: candidates "selected from among eligible Society members"; no qualifications stated	**Partly**
Keep directors out of operational roles	V.C: no director may also be a direct report of the Executive Director	**Added**
Board self-evaluation and goals for itself	Nothing in the Bylaws. July 2026: a training budget for directors (an Act)	**Not done**
Performance metrics and evaluation for the Executive Director	Article VI: no term, evaluation or removal procedure	**Not done**
An independent review or audit reporting to the Board	Act 15-510 requires an annual review the Board approves; none in the public record since FY2008-09	**Not done**
A funding plan before hiring	Not found in the public record	**Not found**

The committee: "it is essential to resolve governance issues BEFORE hiring" (p6).

Source: ED Exploratory Committee final report (delivered July 2020; posted caves.org/wp-content/uploads/2025/05/ED-Exploratory-Commitee-Report.pdf) pp1, 6, 8, 15–17, 21, 27; Bylaws V–VII in the Board Manual of 6 July 2026; Act 15-510; Act 07-10-26:8.6

THE EXECUTIVE ROUTE

$55,000 to search again: what a candidate will find in the record

The money

- FY2026-27 budget, approved 14 March 2026: “Executive Search” $0.
- Executive Director salary still budgeted at $150,000; the Secretary-Treasurer at $104,000 as a full-time hire.
- 14 September 2026: $55,000 “for recruiting costs to source a new Executive” approved, unanimous voice vote. The minutes do not say where the money comes from.
- Board Manual, Appendix (Executive Search): “A candidate guarantee of 6 months to 1 year is required.”
- The Moran Company ran both searches. Its published guarantee: if the person placed “leaves within one year, we will do a replacement search at no additional fee.” The first ED started 4 Aug 2025; termination voted 29 Jun 2026, under 11 months later. The contract is not public.

What a candidate will find in the public record

- The first Executive Director started in August 2025; the contract was terminated “without cause” on 29 June 2026.
- The Bylaws set no term, evaluation or removal procedure for the Executive Director, and no qualifications for the Board or Chair who manage the post.
- July 2026: control of the accounts moved from the Executive Director to the Secretary-Treasurer in nine Acts.
- No audit or review report since FY2008-09; no Form 990 for FY2022.

The Board’s own Executive Director Exploratory Committee, July 2020: “Any ED who would be most beneficial to the NSS would likely reject an offer or quit not long after they were hired if we don’t first make substantial organizational changes.”

Source: FY2026-27 budget (v3, 11 Mar 2026) pp3, 5; final minutes 14 Mar 2026 item 6.1; draft minutes 14 Sep 2026 items 6.1 and 9; draft minutes 29 Jun 2026; Bylaws (Manual, July 2026) V–VI; Board Manuals March and July 2026, Sections 15–18; Form 990 FY2018–25; ED Exploratory Committee final report (July 2020) p27; Board Manual July 2026 p45 (Executive Search); morancompany.com/about-us/our-guarantee (8 Oct 2026); caves.org ED announcement, 17 Apr 2025

THE EXECUTIVE ROUTE

The new posting: changes since 2024, and the record

	2024 posting	2026 posting
Signing authority	"one of two individuals who has signing authority for the NSS"	**Removed**
Location	Could be remote; about 6 trips a year to Huntsville	On site in Huntsville at least 3 days a week
Experience	10 years of management "work or volunteer experience"	10 years of "nonprofit management experience"
Fundraising	"Demonstrated success in donor relations and fundraising" required	No longer a qualification; listed as a priority
Salary	Up to $150,000	$130,000–$150,000
Framing	"first Executive Director"	"next Executive Director"; nothing on the first

The 2026 posting says	The public record
"Reporting to the Board of Governors"	Bylaws VI.A.2: "managed directly by the Chair of the Board." The posting does not mention the Chair.
Manages the Accounting and Finance division; ensures "accurate and timely financial reports"	July 2026: the financial report, the accounts and signing authority moved by Act to the Secretary-Treasurer
"annual operating budget of approximately $1 million"	FY2026-27 budget: expenses $1,518,867. FY2025 Form 990: $1,512,516
"a strong financial foundation"	Net assets $13.7M (FY2025). No audit or review report since FY2008-09; no FY2022 Form 990
No term, evaluation or performance measures	None in the Bylaws either. Applications close 6 Nov 2026; a member Town Hall is still being scheduled

Source: The Moran Company posting, live 8 Oct 2026 (morancompany.com/ed-national-speleological-society) and Position Guide "September 2026"; 2024 posting, Wayback 1 Nov 2024; Bylaws VI.A.2; Board Manual July 2026 Sections 15–18; FY2026-27 budget; Form 990 FY2025; NSS Facebook post, 7 Oct 2026

WHO WAS IN OFFICE

Twelve issues, seventeen people in office

		Anonymized #1	Anonymized #2	Anonymized #3	Anonymized #4	Anonymized #5	Anonymized #6	Anonymized #7	Anonymized #8	Anonymized #9	Anonymized #10	Anonymized #11	Anonymized #12	Anonymized #13	Anonymized #14	Anonymized #15	Anonymized #16	Anonymized #17
CONSTITUTION AND BYLAWS																		
M1	Article III changed; no member ballot recorded	⊗	✕	✕	✕	⊗	⊗	⊗	⊗	⊗	⊗	⊗	⊗	⊗	⊗	✕	✕	⊗
M9	Secretary-Treasurer in the Acts, not the Bylaws	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	⊗
M10	No term, evaluation or removal rule for the ED	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	⊗	⊗	⊗	⊗	✕	✕	✕
IRS FILINGS																		
M2	No Form 990 for FY2022	⊗	✕	✕	✕	⊗	⊗	⊗	⊗	⊗	⊗	⊗	⊗	⊗	⊗	✕	⊗	⊗
M3	$1.7M change on no public return	⊗	✕	✕	✕	✕	✕	✕	⊗	⊗	⊗	⊗	⊗	⊗	⊗	✕	✕	⊗
M5	990 answers contradict NSS documents	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	⊗	⊗	⊗	⊗	✕	✕	✕
M6	990 reports no change to governing documents	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	⊗	⊗	⊗	⊗	✕	✕	✕
M7	990 officer lists do not match the minutes	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	⊗	⊗	⊗	⊗	✕	✕	✕
M14	Form 990s filed late (FY2020, FY2023)	—	✕	✕	✕	✕	✕	✕	—	—	—	—	—	—	—	✕	✕	—
AUDIT AND BOOKS																		
M4	No audit or review, though an Act requires one	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕
M15	Bookkeeping described as unreliable	—	✕	✕	✕	✕	✕	✕	✕	—	—	—	—	—	—	✕	✕	✕
RECORDS																		
M11	Minutes not posted within 30 days	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕	✕
	In office when it arose (solid marks, of 12)	7	12	12	12	10	10	10	8	7	7	3	3	3	3	12	11	7

✕ In office when the issue arose ⊗ Took office later, while the issue continued — Not in office at any point in that period

Names withheld. Each column is one person who held a Board seat or Society office between 2018 and October 2026: the current Board, the Secretary-Treasurer and three directors whose service ended in mid-2026. M4 and M11 recur every year, so each year in office counts as "arose". Returns are signed by one officer, and the FY2023–25 returns state that the Board does not review them.

Source: Roll calls in the Board's posted minutes, 2018–2026; issues register M1–M15 (gocaving.ai/bogwatch, panel P07). Names withheld.

WHO WAS IN OFFICE

Twelve issues, seventeen people in office

		Anonymized #2
CONSTITUTION AND BYLAWS		
M1	Article III changed; no member ballot recorded	✕
M9	Secretary-Treasurer in the Acts, not the Bylaws	✕
M10	No term, evaluation or removal rule for the ED	✕
IRS FILINGS		
M2	No Form 990 for FY2022	✕
M3	$1.7M change on no public return	✕
M5	990 answers contradict NSS documents	✕
M6	990 reports no change to governing documents	✕
M7	990 officer lists do not match the minutes	✕
M14	Form 990s filed late (FY2020, FY2023)	✕
AUDIT AND BOOKS		
M4	No audit or review, though an Act requires one	✕
M15	Bookkeeping described as unreliable	✕
RECORDS		
M11	Minutes not posted within 30 days	✕
	In office when it arose (solid marks, of 12)	12

✕ In office when the issue arose ⊗ Took office later, while the issue continued — Not in office at any point in that period

Names withheld. Each column is one person who held a Board seat or Society office between 2018 and October 2026: the current Board, the Secretary-Treasurer and three directors whose service ended in mid-2026. M4 and M11 recur every year, so each year in office counts as "arose". Returns are signed by one officer, and the FY2023–25 returns state that the Board does not review them.

Seriously, how does anyone get hired into a six-figure a year job with so many errors??

Source: Roll calls in the Board's posted minutes, 2018–2026; issues register M1–M15 (gocaving.ai/bogwatch, panel P07). Names withheld.

FALL REPORTS

What the September 2026 reports say

Money and oversight (S-T and Interim ED report)

- Audit: “extensive audit support … for the FY 2025–2026 audit; anticipated completion remains Fall 2026.” No report yet.
- Form 990 for the year to March 2026: still in “Plans”, so not yet filed.
- Foundation: “Reconciled NSF accounts through June 30, 2026; identified discrepancies … remain pending resolution.” Not described.
- “Created and implemented an Investment Review Department within the Finance Division to strengthen oversight and reconciliation.”
- “Finalized and approved revisions to the financial provisions of the bylaws.” The only such changes in the record are the July 2026 Acts.
- The annual financial review was “presented … to Directors during Convention”. It is not public.
- Problems / Concerns: “None”.

Headquarters, staff and members

- Cave Avenue demolished; the land added to the Shelta Cave Preserve (up to $60,000 authorized in March).
- A “back five” room is now a museum workroom; the last may become museum display space.
- Rentals: in March the ED wrote “the NSS will cease rentals”. Now: finalizing documents for “outreach” rentals.
- Facilities problem: “Funding for the planned work.” Buildings & Grounds head: vacant.
- New hire for bookstore and membership. Social Media and Special Publications managers: vacant.
- Memberships processed up 502 (about +22% dues revenue) on the same period of 2025.
- Strategic plan item 1.a: “Hire Executive Director”.

Source: S-T and Interim ED report, 17 Sep 2026 (pp1–3); Facilities Division report, Autumn 2026; Communications report Q3 2026; Membership Community Manager and Facilities/Bookstore/Membership reports; Conservation & Science operational plan FY26-27; all posted on caves.org, Sep 2026

NEXT BOARD MEETING

Saturday 17 October 2026: the 264th Board meeting

Saturday 17 October 2026

9:00 am MDT · 11:00 am EDT

Virtual (Zoom)

Zoom link, as posted in the agenda:

https://us02web.zoom.us/j/83301095038?pwd=6be3TsMIbwLvwTlRn776rsqAG9sBut.1

Item 4 is "Comments from the Membership".

Agenda: caves.org/…/1017-BoG-Agenda.pdf

Agenda item	What the record shows
2.1 Approve minutes of 14 Sep 2026	The meeting that approved $55,000 for the new search
6.1 "Schultz moves to adopt the NSS Conflict of Interest Policy."	The FY2023–25 Form 990s answered No to a written conflict-of-interest policy, though Act 03-445 has existed since 1985. The policy text is not attached to the agenda.
6.2 "Backe Moves to amend Bylaw 03-445": add "the Secretary-Treasurer, all Executive Staff (present and future)"	03-445 is an Act, not a Bylaw. It would extend the disclosure and recusal duty to the Secretary-Treasurer, an office the Bylaws do not contain.
7. Closed session (Interim ED and BoG only): "NCRC legal update"	Legal matters involving NCRC were also in closed session on 14 Sep 2026: "NO ACTION TAKEN".

Source: Agenda of the 264th Meeting of the Board of Governors, V 1.0, posted 19 Sep 2026: https://caves.org/wp-content/uploads/2026/09/1017-BoG-Agenda.pdf

LIMITS

What the public record cannot tell us

Article III	Was the 2024 wording put to a member ballot? Where is the notice and the count?
FY2022	Was a Form 990 for the year ending March 2022 ever filed? If so, when, and where is it?
The audit	Was the 2021 Borland and Benefield audit completed? What did it find?
The $1.7M	What explains the difference between the internal FY2022 figures and the opening balance on the FY2023 return?
Part VI	Why do the FY2023–25 returns answer No on policies the Manual contains, and No on members?
Part VII	Who reviewed the lists of officers and directors before the FY2023–25 returns were signed?
Line 4	Why do the FY2024 and FY2025 returns report no significant change to the governing documents?

Source: Summary of open items in docs/research/2026-09-23_financial-records_findings.md §§2, 8–11, 14 and 2026-09-30_bog-manual-acts-bylaws_findings.md §7

NEXT STEPS

What any member, or anyone, can do

1	**Read the returns**	IRS Tax Exempt Organization Search lists the NSS returns (EIN 54-6026867) and the Foundation's (EIN 23-7282767). apps.irs.gov/app/eos/
2	**Ask the IRS**	Form 4506-A requests a copy of a specific year's Form 990. The IRS sends it or reports that none is on file. This would settle FY2022. www.irs.gov/forms-pubs/about-form-4506-a
3	**Ask the Society**	Anyone may ask an exempt organization in writing for its three most recent returns (IRC §6104(d)).
4	**Ask the Board**	Members can ask at a Board meeting for the Article III ballot record, the audit report, and who reviews the Form 990.
5	**Check my work**	Every file used tonight is public. The slides and source list will be posted with the recording.

Source: IRC §6104(d); IRS Form 4506-A instructions; IRS Tax Exempt Organization Search

SOURCES

Where every figure comes from

IRS Form 990 e-file XML (NSS FY2018–21, FY2023–25; NSF FY2019–25)	https://apps.irs.gov/pub/epostcard/990/xml/
IRS Tax Exempt Organization Search: copies of returns, Pub. 78, auto-revocation list	https://apps.irs.gov/app/eos/
ProPublica Nonprofit Explorer (IRS SOI extract, FY2011–17)	https://projects.propublica.org/nonprofits/organizations/546026867
Officer, S-T and Finance reports by meeting (caves.org)	https://caves.org/wp-content/uploads/p/reports/
Board minutes (caves.org)	https://caves.org/wp-content/uploads/p/boardminutes/
Board Manual “As of 20 June 2023” (Wayback 19 Oct 2023)	https://web.archive.org/web/20231019112853/https://caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf#page=10
Board Manual “As of July 1st, 2024”	https://caves.org/wp-content/uploads/2024/07/Board-of-Governors-Manual-2024-7-1_0.0.pdf#page=6
Board Manual “As of the July 06, 2026 meeting”	https://caves.org/wp-content/uploads/2026/09/Board-of-Governors-Manual-2026-07-06.pdf#page=6
Constitution PDF, 2008 (Wayback)	https://web.archive.org/web/20080517111905/http://www.caves.org/nss-business/bog/Constitution.pdf
Constitution PDF, uploaded 20 Jun 2022	https://caves.org/wp-content/uploads/2022/06/NSS_Constitution.pdf
Minutes, 14 Jul 2014, item 4	https://caves.org/wp-content/uploads/p/boardminutes/1407BOG.pdf#page=2
Minutes, 10 Mar 2024, item 5.5	https://caves.org/wp-content/uploads/p/boardminutes/2403BOG.pdf
NSS Restructuring Proposal, 2024-2-7	https://caves.org/wp-content/uploads/2024/02/NSS-Restructuring-Proposal_2024-2-7.pdf

Old-site fiscal pages (2000–2010), audited statements and budgets are Internet Archive copies of caves.org/nss-business/fiscal-information/. Each file’s URL, retrieval time and SHA-256 is in the project manifests.

Source: data/manifest.csv, data/finance_manifest.csv, data/governance_manifest.csv, data/financial/SOURCES.md — identified, read-only retrieval 22–30 Sep 2026